Form No:HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH BAHAWALPUR

JUDICIAL DEPARTMENT

Crl. Appeal No.481 of 2022

Mushtaq Ahmad. **Versus** The State etc.

S. No. of order/ proceeding.	Date of order/ proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.

15.09.2025. Mr. Shoaib Iqbal, Advocate for the appellant.
Mr. Shahid Farid, Assistant District Public Prosecutor for the State.
Mr. Muhammad Munir Gondal, Advocate for respondent No.2.

By way of filing of the instant appeal in terms of Section 417 (2-A) Cr.P.C, the appellant has challenged the judgment dated 25.01.2022 passed by the learned Additional Sessions Judge, Liaquatpur, whereby while exercising the powers conferred under Section 265-K Cr.P.C the learned trial Court has acquitted the accused/respondent No.2 of the charge in case F.I.R No.513/2020 dated 26.08.2020, offence under Section 462-E PPC, Police Station Shedani Sharif District Rahim Yar Khan.

2. Initially, the office has raised objection to the registration of the instant appeal on the ground that the same is barred by 27 days and better copy of Page-11 should be annexed with the file. However, the matter was placed before the Court as an objection case and vide order dated 12.09.2022 the office objections were sustained with a direction to remove the same within seven days and in compliance of the said order, the application (Crl. Misc. No.2/2022) under Section 5 of the Limitation Act, 1908 for condonation of delay in filing of the appeal was filed by the appellant on 19.09.2022. Vide order dated 22.02.2024, the instant appeal was admitted for regular hearing and notice was issued to respondent No.2. However, on 21.10.2024 the following order was passed by this Court:-

> "The learned counsel appearing on behalf of respondent No.2 submits that initially when the instant

> appeal was filed, an objection was raised to the registration of the said appeal by the Office and the said objection was sustained by the Court, however, without adverting to this question of law, the appeal was admitted for regular hearing vide order dated 22.02.2024, passed by this Court and submits that the question as to whether after the sustaining of the objection raised with regard to the maintainability of the appeal, as being barred by time, the said appeal could have been admitted for regular hearing, needs to be addressed in the first instance. The contention of the learned counsel for the respondent No.2 is tenable, therefore, the learned counsel for the appellant is directed to assist the Court with respect to the contention of the learned counsel for the appellant."

3. It is well settled by now that any order or judgment passed by the Trial, Appellant or Revisional Court should be indicative of the fact that the Court concerned was not only aware but also conscious regarding the question of limitation, which is to be dealt with diligently by applying the proper judicious mind prior to dilating upon and deciding the controversy on merits, and disposal on merits alone would not be sufficient to presume that the delay has been condoned. In this context, reliance is placed on the judgment reported as *Muhammad Sami vs. Additional District Judge, Sargodha and 2 others* **(2007 SCMR 621)**, wherein the Hon'ble Supreme Court of Pakistan has held as under:-

> *"It is worth mentioning that the question of limitation was neither dilated upon nor decided by the learned High Court. In our considered view the question of limitation should have not been left unattended to having a substantial bearing on the fate of the case. It is bounden duty of the Court to notice the question of limitation irrespective of the fact whether it was agitated or not. In this regard we are fortified by the dictum laid down in case titled Muhammad Buta v. Habib Ahmad PLD 1985 SC 153. There is no cavil with the proposition that any order or judgment passed by trial, appellate or revisional Courts should be indicative of the fact that the Courts concerned were not only aware but conscious regarding the question of limitation dealt with the same with diligent application of mind prior to, dilating upon and deciding the controversy on merit because disposal on merit alone would not be sufficient to presume that the delay was condoned. In this regard reference can be*

made to case titled Ahsan Ali v. District Judge PLD 1969 SC 167, which still holds the field and relevant portion whereof is reproduced herein below for ready reference:

> *"It has also been held by this Court in several cases that mere disposal of the appeal on merits is not sufficient to lead to the inference that the delay must have been condoned. There must be something in the order or judgment itself to show that the Court concerned was conscious of the fact that the proceeding was out of time and had applied its mind to the question of limitation before dealing with the proceeding on merits."*

In the case of *Hakim Muhammad Buta and another vs. Habib Ahmad and others* **(PLD 1985 SC 153)**, the apex Court has also held as under:-

> *"This Court had in Ahsan Ali v. District Judge (2) clearly laid down that it was the duty of the Court to notice the point of limitation, whether the plea of limitation was raised or not, and that a waiver of the question of limitation is not permissible, even where the period of limitation is prescribed by special or a local law."*

4. On the touchstone of the above referred dictums of the Hon'ble Supreme Court of Pakistan, it is observed that vide order dated 21.10.2024 the instant matter was rightly fixed for hearing and deciding the question of limitation in the first instance. This Court is conscious of the fact that primarily the matter in hand ought to be decided as an objection case on the question of maintainability of the instant appeal, but as the same has already been registered and a number has also been assigned to the appeal as well as to the application for the condonation of delay, therefore, I find it expedient to decide the application for the condonation of delay (Crl. Misc. No.2/2022) whereupon the fate of the criminal appeal (Crl. Appeal No.481 of 2022) is depending.

5. Learned counsel for the appellant in support of the application under Section 5 of the Limitation Act, 1908 for the condonation of delay in filing of the appeal has argued that the appellant got the knowledge about the passing of the impugned judgment on 11.03.2022 and he moved the application for obtaining certified copy

of the judgment on 12.03.2022, which was delivered on the same day and the instant appeal was filed on 25.03.2022, therefore, the same was filed within the prescribed period of limitation, reckoned from the date of knowledge i.e. 11.03.2022. He has further argued that F.I.R in this case was lodged by the complainant/appellant on behalf of SNGPL department in his official capacity and the period of limitation for filing of the instant appeal would be considered as sixty days.

6. Heard. Record perused.

7. Although the application (Crl. Misc. No.2/2022) has been filed while invoking the provisions of Section 5 of the Limitation Act, 1908, yet the learned counsel for the appellant has embarked on Article 157 of the Limitation Act, 1908, prescribed by the First Schedule under Section 3 of the Limitation Act, 1908, where the period of limitation for filing an appeal has been provided as six months. I am afraid, according to the provisions of sub-section (2) of Section 29 of the Limitation Act, 1908, the period of limitation provided by the First Schedule under Section 3 of the Limitation Act, 1908, is only applicable to a matter where different period of limitation for preferring an appeal is prescribed by any special or local law, **and for the purpose of determining any period of limitation prescribed for any suit/appeal/application by any special or local law:**

> **(a) the provisions contained in section 4, sections 9 to 18, and section 22 shall apply only in so far as, and to the extent of which, they are not expressly excluded by such special or local law; and**
>
> **(b) the remaining provisions of this Act shall not apply.**

It is well settled by now that the Code of Criminal Procedure, 1898 and the Civil Procedure Code, 1908 are to be treated as the special law and not the general law, for the purpose of Limitation Act, 1908. The provisions contained in Sections 4, 9 to 18 and 22 of the Limitation Act, 1908, as prescribed by clause (a) of sub-section (2) of Section 29 of the Limitation Act, 1908, shall apply to the special law, however, Section 5 of the Limitation Act, 1908 for not finding mention in

Section 29 ibid. shall not be applicable in this regard, as clause (b) of sub-section (2) of Section 29 of the Limitation Act, 1908 provides that all the remaining provisions of this Act shall not apply. In this context, reliance is placed on the dictum of the Hon'ble Supreme Court of Pakistan reported as *Hafeez Ahmad and others vs. Civil Judge, Lahore and others* **(PLD 2012 SC 400)**, wherein it has been held as under:-

> *"A look at the above quoted paragraphs reveals that though the Code of Criminal Procedure is a general procedural law yet it has been treated as a special law inasmuch as it prescribed a period of limitation for filing a petition for leave to appeal. The Code of Civil Procedure as held above, despite being a general law, is a special law within the terms of section 29 of the Act. We, therefore, hold that section 4, sections 9 to 18 and section 22 of the Limitation Act would be applicable even to a petition filed under section 15 of the Code. Any time consumed for obtaining certified copies of pleadings, documents and order required in support of such petition would thus be excluded. It may, however, be made clear that section 5 of the Limitation Act shall not be applicable to such petition as it does not find mention in section 29 of the Limitation Act."*

8. Sub-section (2-A) of Section 417 Cr.P.C ordains that "A person aggrieved by the order of acquittal passed by any Court other than a High Court, may, within thirty days file an appeal against such order". The said period of thirty days will run from the date of passing of the order of acquittal and not from the date of knowledge. Therefore, the contention of the learned counsel for the appellant that the instant appeal has been filed within the prescribed period of limitation reckoned from the date of knowledge i.e. 11.03.2022, is not tenable. For the other contention of the learned counsel for the appellant that SNGPL is a government department, it may be observed that Sui Northern Gas Pipelines Limited (SNGPL) was incorporated as a private limited company and then converted into a public limited company under the Companies Act, 2017, which Act was enacted with the objective of facilitating corporatization and promoting development of corporate sector, encouraging use of technology and electronic means in conduct of business and regulation thereof, regulating corporate entities for protecting interests of shareholders, creditors, other stakeholders and general public, inculcating principles

of good governance and safeguarding minority interests in corporate entities and providing any alternate mechanism for expeditious resolution of corporate disputes and matters arising out of or connected therewith. A 'limited company' is a business where the owners' assets and income are separate and distinct from the company's assets and income, and it is also called as a 'private company'. The mode of forming a company has been described in Section 14 of the Companies Act, 2017 in the manner that **(a)** three or more persons associated for any lawful purpose may form a public company, **(b)** Two or more persons so associated may form a private company and **(c)** one person may form a single member company by complying with the requirements in respect of registration of a private company and such other requirements as may be specified. In other words, the persons forming a private company are the "legal persons" who have established the legal entities through a law, such as public companies, private companies, limited liability partnerships, associations etc., registered under the Companies Act, 2017. Thus, it can safely be inferred that "a company" is "a person" created by law, which can sue and be sued except that it cannot be jailed or hanged, so it comes within the meaning of "A person" as given in sub-section (2-A) of Section 417 Cr.P.C. Therefore, due to the bar contained in clauses (a) & (b) of sub-section (2) of Section 29 of the Limitation Act, 1908 and there being the special limitation of thirty days prescribed by the above-mentioned statue, the provisions of Section 5 and Article 157 of the Limitation Act, 1908 have lost their applicability or relevancy over the matter in hand.

9. It may further be observed that lapse of time in a criminal matter is sufficient to provide protection to a person, who has been acquitted, against further judicial process by way of filing of an appeal against his acquittal. In the dictum reported as *Fakhar-ud-Din vs. Fazal Karim and others* **(1999 SCMR 795)**, the Hon'ble Supreme Court of Pakistan has endorsed the view expressed in the cases of Piran Ditta v. The State and others (1970 SCMR 282) and Mst. Zeenat Sultan vs.

Mumtaz Khan etc. (PLD 1994 SC 667), wherein it was *inter alia* held as under:-

> *"The convict might be placed once again in peril of his life by a petition of this kind, and it is for this reason that the technical requirement of limitation assumes importance. It is not too much to ask that he who seeks to place his fellow-citizens' life in peril, by legal process, should satisfy all the technical requirements of that process.*
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> *The right to life is the basic right that human beings process. Once a charge for a capital offence, duly tried, results in acquittal, the accused person acquires a very precious right and he should not, therefore, be put in jeopardy of his life by a petition for leave to appeal filed out of time. The law that enables interference with the acquittal must, therefore, be strictly applied in favour of the accused person."*

10. In view of all above, I am of the considered view that the provision of condonation of delay under Section 5 and Article 157 of the Limitation Act, 1908 is not available for filing of an appeal against acquittal. Hence, Crl. Misc. No.2/2022 is hereby rejected and the instant appeal is **dismissed** being barred by time.

(RAJA GHAZANFAR ALI KHAN)
JUDGE

Approved for reporting.

JUDGE

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